

demurrer challenging Plaintiffs' pleading does not cause Defendants' discovery obligations to become unduly burdensome.

Defendants raised, for the first time in reply, the claim that Defendant Lamera is a high government official who should not be subject to deposition absent a showing of compelling reasons under the "apex doctrine". The court will not "consider issues raised for the first time in a reply brief." (*Am. Indian Model Schs. v. Oakland Unified Sch. Dist.* (2014) 227 Cal.App.4th 258, 275.)

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**JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.**  
**Case No. CU24-09570**

AMROCK's Demurrer to Complaint

**TENTATIVE RULING**

Defendant AMROCK TITLE CALIFORNIA ("AMROCK") demurs to Plaintiff JOSEPH GULLO's first amended complaint alleging violation of the Fair Debt Collection Practices Act and unlawful business practices.

Plaintiff's opposition filed May 7, 2026 concedes the insufficiency of the operative complaint. Plaintiff requests leave to amend. Leave to amend should be allowed when a defect is capable of cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Policy favors liberal granting of leave to amend where there is no prejudice to the opposing party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) The Court finds a reasonable possibility that Plaintiff can amend his complaint to cure defects in his first amended complaint.

AMROCK's demurrer is sustained with leave to amend. Plaintiff must file his second amended complaint within 20 days of the date of service of this order.

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**EBONAE WEBB vs. PACE SOLANO INC.**  
**Case No. FCS058246**

Motion to Strike Punitive Damages and Other Irrelevant Allegations from Plaintiffs' Complaint

**TENTATIVE RULING**

Preliminarily, the court has earlier advised Plaintiff EBONAE WEBB ("WEBB") that the claims she has asserted on behalf of her minor children can only be pursued by appointment of a guardian ad litem, and that this guardian must be represented by a